

Court No. - 21

Case :- WRIT - C No. - 15415 of 2023

Petitioner :- Maan Singh

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Anshu Chaudhary

Counsel for Respondent :- C.S.C.,Alok Mishra

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Prashant Kumar,J.

The instant petition has been filed challenging the order dated 04.02.2023 issued by respondent no. 4 assessing a sum of Rs. 1,36,673/- against the petitioner in exercise of power under Section 126 of the Electricity Act, 2003.

The case of the petitioner is that the impugned assessment order is apparently illegal as it fails to consider the representation filed by the petitioner in response to the notice of provisional assessment. In support of the said contention, learned counsel for the petitioner has invited our attention towards a communication sent by the respondent dated 05.01.2023, in which they had referred to the objection of the petitioner and had sought certain information from him. It is submitted that the aforesaid communication reveals that the objections were duly filed but the impugned order records that no objection was filed.

Sri Alok Mishra, learned counsel for the respondent Electricity-Department submits that the petitioner did not submit any clarification in pursuance of the communication dated 05.01.2023. However, he is not in a position to dispute that the aforesaid communication reveals that the petitioner had filed objections against the notice of provisional assessment but which had not even been alluded to while passing the order of

final assessment.

Consequently, the order of final assessment is rendered illegal and is hereby quashed leaving it open to the petitioner to submit clarifications in pursuance to the communication dated 05.01.2023 within two weeks from today. The Respondents-Corporation will thereafter be at liberty to pass order of final assessment strictly in accordance with the procedure prescribed under the U.P. Electricity supply Code, 2005.

The petition stands disposed of accordingly.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 8.5.2023

Ruhi